

1 AN ACT relating to the Kentucky Communications Network Authority and
2 declaring an emergency.

3 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

4 ➔Section 1. KRS 154.15-010 is amended to read as follows:

5 As used in this subchapter:

6 (1) "Authority" means the Kentucky Communications Network Authority;

7 (2) "Board" means the Board of the Kentucky Communications Network Authority;

8 (3) ~~"Executive director" means the executive director of the Kentucky Communications~~
9 ~~Network Authority;~~

10 (4) "Network" or "KentuckyWired" means the Commonwealth's open-access
11 broadband network; and

12 (5) "Partnership" means the public-private partnership entered into between the
13 Commonwealth and a private entity or entities for the purpose of creating, running,
14 and maintaining the network.

15 ➔Section 2. KRS 154.15-020 is amended to read as follows:

16 (1) The Kentucky Communications Network Authority is established and shall be
17 attached to the **Finance and Administration Cabinet for administrative**
18 **purposes**~~[Office of the Governor. The authority shall be headed by an executive~~
19 ~~director who shall be hired by the board and approved by the Governor].~~

20 (2) ~~[Notwithstanding KRS 42.726,]~~The duties of the authority shall be to:

21 (a) Oversee and maintain KentuckyWired, the Commonwealth's open-access
22 broadband network;

23 (b) Manage the master agreement establishing the public-private partnership
24 between the Commonwealth and its private industry partner or partners. The
25 purpose of the agreement is to design, engineer, build, operate, maintain, and
26 upgrade the network;

27 (c) Provide network connectivity to public agencies;

- 1 (d) Offer access to entities eligible to utilize excess capacity on the network;
- 2 (e) Manage other aspects of the network and its utilization~~[through the executive~~
3 ~~director and]~~ with oversight and input from the board established in KRS
4 154.15-030~~[and the advisory group established in this section];~~
- 5 (f) Promulgate administrative regulations **in accordance with**~~[pursuant to]~~ KRS
6 Chapter 13A necessary to implement the purposes of this subchapter;
- 7 (g) Enter into contracts with public and private entities to carry out its duties and
8 responsibilities. A contract or other agreement involving the acquisition or
9 disposition of a property interest by the Commonwealth shall be signed by the
10 secretary of the Finance and Administration Cabinet. KRS Chapters 45A and
11 56 may require the secretary's signature on other contracts or agreements;
- 12 (h) Provide program management services ensuring the financial viability of the
13 master agreement and related contracts and agreements, including grant
14 administration, contract compliance and oversight, community planning
15 support, and constituent services; **and**
- 16 (i) Seek out, secure, and manage funding sources for the network~~;~~ ~~and~~
- 17 ~~(j) Create an advisory group, including major stakeholders, to provide input and~~
18 ~~feedback on issues important to the user community and to the long-term~~
19 ~~sustainability of the project and the network. The advisory group shall be~~
20 ~~administratively attached to and managed by the authority. The advisory~~
21 ~~group shall include but not be limited to representatives of:~~
- 22 1. ~~The Department of Education;~~
- 23 2. ~~The Council on Postsecondary Education;~~
- 24 3. ~~The Cabinet for Economic Development;~~
- 25 4. ~~The Cabinet for Health and Family Services;~~
- 26 5. ~~The Transportation Cabinet;~~
- 27 6. ~~The Justice and Public Safety Cabinet;~~

- 1 7.—~~The Finance and Administration Cabinet;~~
- 2 8.—~~The Administrative Office of the Courts;~~
- 3 9.—~~The Legislative Research Commission;~~
- 4 10.—~~Institutions of higher education;~~
- 5 11.—~~Local government entities;~~
- 6 12.—~~Libraries;~~
- 7 13.—~~Public health care institutions or agencies;~~
- 8 14.—~~Kentucky Educational Television; and~~
- 9 15.—~~Others whose input will benefit the network].~~

10 (3) **The executive director of the Commonwealth Office of Technology established in**
11 **KRS 42.724 shall assign personnel employed with the Commonwealth Office of**
12 **Technology to carry out the functions and responsibilities of the authority**~~[With~~
13 ~~the approval of the board, the executive director may hire additional officers and~~
14 ~~other personnel necessary for the proper functioning of the authority, fix their~~
15 ~~salaries, and prescribe their duties. The executive director and persons employed by~~
16 ~~the authority shall not be subject to the provisions of KRS Chapter 18A].~~

17 (4) (a) With the approval of the board, the executive director **of the Commonwealth**
18 **Office of Technology** may make, execute, and effectuate contracts, leveraging
19 future revenues from provision of government-to-government services and
20 sale or lease of excess capacity, to incur debt in the name of the authority and
21 enter into financing agreements with the Commonwealth, agencies of the
22 Commonwealth, lending institutions, investors, or investing entities.

23 (b) The total amount of debt or financing under this subsection shall not exceed
24 one hundred ten million dollars (\$110,000,000), and shall not leverage any
25 future revenues committed to the repayment of any other debt, or expected to
26 be used for the repayment of any other debt, as of the time the debt or
27 financing is entered into.

- 1 (c) Any proposed debt or financing under this subsection shall be submitted to the
2 Capital Projects and Bond Oversight Committee for review at least fourteen
3 (14) days prior to the committee meeting.
- 4 (d) If any debt or financing is incurred under this subsection, the authority shall
5 provide to the Legislative Research Commission:
- 6 1. Within thirty (30) days of entering into a debt or financing agreement, a
7 copy of the agreement; and
- 8 2. On January 1, April 1, July 1, and October 1 of each year that the debt
9 or financing is outstanding:
- 10 a. The amount of principal and interest remaining on the debt or
11 financing;
- 12 b. The use to which the capital gained from the debt or financing has
13 been put; and
- 14 c. Any amendments, if any, to the original debt or financing
15 instruments or agreements.

16 ➔Section 3. KRS 154.15-030 is amended to read as follows:

- 17 (1) The Board of the Kentucky Communications Network Authority is established. The
18 board shall be attached administratively to the **Finance and Administration**
19 **Cabinet**~~[Office of the Governor]~~.
- 20 (2) The board shall consist of:
- 21 (a) The **chief information officer of the Department of Education**~~[secretary of~~
22 ~~the Governor's Executive Cabinet]~~ or designee, who shall serve as chair of the
23 board;
- 24 (b) **Two (2) members designated by the Governor as follows:**
- 25 **1. One (1) member selected from a list of three (3) nominees submitted**
26 **by the Kentucky League of Cities; and**
- 27 **2. One (1) member selected from a list of three (3) nominees submitted**

- 1 by the Kentucky Association of Counties~~[The state budget director or~~
2 ~~designee;~~
- 3 ~~(c) The secretary of the Transportation Cabinet or designee;~~
- 4 ~~(c)(d)~~ The Commissioner of Agriculture~~[secretary of the Cabinet for~~
5 ~~Economic Development]~~ or designee;
- 6 ~~(d)(e)~~ The Secretary of State~~[the Justice and Public Safety Cabinet]~~ or
7 designee;
- 8 ~~(e)(f)~~ The Treasurer~~[commissioner of the Department for Local Government]~~
9 or designee; and
- 10 ~~(f)(g)~~ A representative designated by the Center for Rural Development.
- 11 (3) The duties of the board shall be to:
- 12 (a) Develop and implement a strategic plan for and provide policy direction to the
13 authority;
- 14 (b) Review performance reports from the partners named in the master agreement
15 regarding deployment, operations, and administration of the network and its
16 compliance with service level agreements with the Commonwealth;
- 17 (c) Monitor the results achieved through the partnership's strategy to develop new
18 revenue streams and expand network usage through marketing and awareness
19 programs;
- 20 (d) Approve fiscal planning for the authority including budget development, state
21 appropriations management, cost-recovery schedules, grant administration,
22 and billing services;
- 23 (e) Establish rates for services offered through the network and establish methods
24 for customer account management; and
- 25 (f) Direct upgrades to technology as necessary.
- 26 (4) The board shall meet at least semiannually and at other times upon the call of the
27 chair.

1 (5) The board may form committees or other subgroups as necessary to accomplish its
2 duties and functions.

3 ➔Section 4. KRS 42.014 is amended to read as follows:

4 (1) There is established within the cabinet the:

5 (a) Office of the Secretary;

6 (b) Commonwealth Office of Technology~~[-]~~ and the Office of the Controller, each
7 of which shall be headed by an executive director appointed by the secretary
8 with the approval of the Governor;

9 (c) Kentucky Communications Network Authority established in Section 2 of
10 this Act and headed by the executive director of the Commonwealth Office
11 of Technology;

12 (d) Board of the Kentucky Communications Network Authority established in
13 Section 3 of this Act; and

14 (e)~~(c)~~ Department of Revenue and the Department for Facilities and Support
15 Services, each of which shall be headed by a commissioner appointed by the
16 secretary, upon the approval of the Governor, and responsible to the secretary.
17 Each of these departments may have at least one (1) major assistant not in the
18 classified service.

19 (2) The secretary shall establish the internal organization and assignment of functions
20 which are not established by statute, and shall divide the cabinet into the offices,
21 bureaus, divisions, or other units the secretary deems necessary to perform the
22 functions, powers, and duties of the cabinet, subject to the provisions of KRS
23 Chapter 12.

24 (3) All appointments under this chapter to positions not in the classified service shall be
25 made pursuant to KRS 12.050, and such appointees shall be major assistants to the
26 secretary and shall assist in the development of policy.

27 ➔Section 5. KRS 42.726 is amended to read as follows:

- 1 (1) The Commonwealth Office of Technology shall be the lead organizational entity
2 within the executive branch regarding delivery of information technology services,
3 including application development and delivery, and shall serve as the single
4 information technology authority for the Commonwealth.
- 5 (2) The roles and duties of the Commonwealth Office of Technology shall include but
6 not be limited to:
- 7 (a) Providing technical support and services to all executive agencies of state
8 government in the application of information technology;
 - 9 (b) Assuring compatibility and connectivity of Kentucky's information systems;
 - 10 (c) Developing strategies and policies to support and promote the effective
11 applications of information technology within state government as a means of
12 saving money, increasing employee productivity, and improving state services
13 to the public, including electronic public access to information of the
14 Commonwealth;
 - 15 (d) Developing, implementing, and managing strategic information technology
16 directions, standards, and enterprise architecture, including implementing
17 necessary management processes to ensure full compliance with those
18 directions, standards, and architecture;
 - 19 (e) Promoting effective and efficient design and operation of all major
20 information resources management processes for executive branch agencies,
21 including improvements to work processes;
 - 22 (f) Developing, implementing, and maintaining the technology infrastructure of
23 the Commonwealth and all related support staff, planning, administration,
24 asset management, and procurement for all executive branch cabinets and
25 agencies except:
 - 26 1. Agencies led by a statewide elected official;
 - 27 2. The nine (9) public institutions of postsecondary education;

- 1 3. The Department of Education's services provided to local school
- 2 districts;
- 3 4. The Kentucky Retirement Systems, the County Employees Retirement
- 4 System, the Kentucky Public Pensions Authority, and the Teachers'
- 5 Retirement System;
- 6 5. The Kentucky Housing Corporation;
- 7 6. The Kentucky Lottery Corporation;
- 8 7. The Kentucky Higher Education Student Loan Corporation; and
- 9 8. The Kentucky Higher Education Assistance Authority;
- 10 (g) Facilitating and fostering applied research in emerging technologies that offer
- 11 the Commonwealth innovative business solutions;
- 12 (h) Reviewing and overseeing large or complex information technology projects
- 13 and systems for compliance with statewide strategies, policies, and standards,
- 14 including alignment with the Commonwealth's business goals, investment,
- 15 and other risk management policies. The executive director is authorized to
- 16 grant or withhold approval to initiate these projects;
- 17 (i) Integrating information technology resources to provide effective and
- 18 supportable information technology applications in the Commonwealth;
- 19 (j) Establishing the central statewide geographic information clearinghouse to
- 20 maintain map inventories, information on current and planned geographic
- 21 information systems applications, information on grants available for the
- 22 acquisition or enhancement of geographic information resources, and a
- 23 directory of geographic information resources available within the state or
- 24 from the federal government;
- 25 (k) Coordinating multiagency information technology projects, including
- 26 overseeing the development and maintenance of statewide base maps and
- 27 geographic information systems;

- 1 (l) Providing access to both consulting and technical assistance, and education
2 and training, on the application and use of information technologies to state
3 and local agencies;
- 4 (m) In cooperation with other agencies, evaluating, participating in pilot studies,
5 and making recommendations on information technology hardware and
6 software;
- 7 (n) Providing staff support and technical assistance to the Geographic
8 Information Advisory Council and the Kentucky Information Technology
9 Advisory Council;
- 10 (o) Overseeing the development of a statewide geographic information plan with
11 input from the Geographic Information Advisory Council;
- 12 (p) Developing for state executive branch agencies a coordinated security
13 framework and model governance structure relating to the privacy and
14 confidentiality of personal information collected and stored by state executive
15 branch agencies, including but not limited to:
- 16 1. Identification of key infrastructure components and how to secure them;
17 2. Establishment of a common benchmark that measures the effectiveness
18 of security, including continuous monitoring and automation of
19 defenses;
- 20 3. Implementation of vulnerability scanning and other security
21 assessments;
- 22 4. Provision of training, orientation programs, and other communications
23 that increase awareness of the importance of security among agency
24 employees responsible for personal information; and
- 25 5. Development of and making available a cyber security incident response
26 plan and procedure;
- 27 (q) Establishing, publishing, maintaining, and implementing comprehensive

1 policy standards and procedures for the responsible, ethical, and transparent
2 use of generative artificial intelligence systems and high-risk artificial
3 intelligence systems by departments, agencies, and administrative bodies,
4 including but not limited to policy standards and procedures that:

- 5 1. Govern their procurement, implementation, and ongoing assessment;
- 6 2. Address and provide resources for security of data and privacy; and
- 7 3. Create guidelines for acceptable use policies for integrating high-risk
8 artificial intelligence systems;~~and~~

9 (r) Preparing proposed legislation and funding proposals for the General
10 Assembly that will further solidify coordination and expedite implementation
11 of information technology systems;and

12 (s) Carrying out the functions and responsibilities of the Kentucky
13 Communications Network Authority established in Section 2 of this Act.

14 (3) The Commonwealth Office of Technology may:

- 15 (a) Provide general consulting services, technical training, and support for
16 generic software applications, upon request from a local government, if the
17 executive director finds that the requested services can be rendered within the
18 established terms of the federally approved cost allocation plan;
- 19 (b) Promulgate administrative regulations in accordance with KRS Chapter 13A
20 necessary for the implementation of KRS 42.720 to 42.742, 45.253, 171.420,
21 186A.040, and 186A.285;
- 22 (c) Solicit, receive, and consider proposals from any state agency, federal agency,
23 local government, university, nonprofit organization, private person, or
24 corporation;
- 25 (d) Solicit and accept money by grant, gift, donation, bequest, legislative
26 appropriation, or other conveyance to be held, used, and applied in accordance
27 with KRS 42.720 to 42.742, 45.253, 171.420, 186A.040, and 186A.285;

- 1 (e) Make and enter into memoranda of agreement and contracts necessary or
2 incidental to the performance of duties and execution of its powers, including
3 but not limited to agreements or contracts with the United States, other state
4 agencies, and any governmental subdivision of the Commonwealth;
- 5 (f) Accept grants from the United States government and its agencies and
6 instrumentalities, and from any source, other than any person, firm, or
7 corporation, or any director, officer, or agent thereof that manufactures or
8 sells information resources technology equipment, goods, or services. To
9 these ends, the Commonwealth Office of Technology shall have the power to
10 comply with those conditions and execute those agreements that are
11 necessary, convenient, or desirable; and
- 12 (g) Purchase interest in contractual services, rentals of all types, supplies,
13 materials, equipment, and other services to be used in the research and
14 development of beneficial applications of information resources technologies.
15 Competitive bids may not be required for:
- 16 1. New and emerging technologies as approved by the executive director
17 or her or his designee; or
- 18 2. Related professional, technical, or scientific services, but contracts shall
19 be submitted in accordance with KRS 45A.690 to 45A.725.
- 20 (4) Nothing in this section shall be construed to alter or diminish the provisions of KRS
21 171.410 to 171.740 or the authority conveyed by these statutes to the Archives and
22 Records Commission and the Department for Libraries and Archives.
- 23 (5) The Commonwealth Office of Technology shall, on or before October 1 of each
24 year, submit to the Legislative Research Commission a report in accordance with
25 KRS 57.390 detailing:
- 26 (a) Any security breaches that occurred within organizational units of the
27 executive branch of state government during the prior fiscal year that required

1 notification to the Commonwealth Office of Technology under KRS 61.932;

2 (b) Actions taken to resolve the security breach, and to prevent additional security
3 breaches in the future;

4 (c) A general description of what actions are taken as a matter of course to protect
5 personal data from security breaches; and

6 (d) Any quantifiable financial impact to the agency reporting a security breach.

7 ➔Section 6. KRS 42.732 is amended to read as follows:

8 (1) There is hereby created the Kentucky Information Technology Advisory Council to:

9 (a) Advise the executive director of the Commonwealth Office of Technology on
10 approaches to coordinating information technology solutions among libraries,
11 public schools, local governments, universities, and other public entities;

12 (b) Advise the executive director of the Commonwealth Office of Technology on
13 coordination among and across the organizational units of the executive
14 branch of state government to prepare for, respond to, and prevent attacks;
15 and

16 (c) Provide a forum for the discussion of emerging technologies that enhance
17 electronic accessibility to various publicly funded sources of information and
18 services.

19 (2) The Kentucky Information Technology Advisory Council shall consist of:

20 (a) The state budget director or a designee;

21 (b) The state librarian or a designee;

22 (c) One (1) representative from the public universities to be appointed by the
23 Governor from a list of three (3) persons submitted by the Council on
24 Postsecondary Education;

25 (d) Three (3) citizen members from the private sector with information
26 technology knowledge and experience appointed by the Governor;

27 (e) Two (2) representatives of local government appointed by the Governor;

- 1 (f) One (1) representative from the area development districts appointed by the
2 Governor from a list of names submitted by the executive directors of the area
3 development districts;
- 4 (g) One (1) member of the media appointed by the Governor;
- 5 (h) The executive director of the Kentucky Authority for Educational Television;
- 6 (i) The chair of the Public Service Commission or a designee;
- 7 (j) Two (2) members of the Kentucky General Assembly, one (1) from each
8 chamber, selected by the Legislative Research Commission;
- 9 (k) One (1) representative of the Administrative Office of the Courts;
- 10 (l) One (1) representative from the public schools system appointed by the
11 Governor;
- 12 (m) One (1) representative of the Kentucky Chamber of Commerce; **and**
- 13 (n) The executive director of the Commonwealth Office of Technology; ~~and~~
- 14 ~~(o) The executive director of the Kentucky Communications Network Authority~~
15 ~~or designee].~~
- 16 (3) Appointed members of the council shall serve for a term of two (2) years. Members
17 who serve by virtue of an office shall serve on the council while they hold the
18 office.
- 19 (4) Vacancies on the council shall be filled in the same manner as the original
20 appointments. If a nominating organization changes its name, its successor
21 organization having the same responsibilities and purposes shall be the nominating
22 organization.
- 23 (5) Members shall receive no compensation but shall receive reimbursement for actual
24 and necessary expenses in accordance with travel and subsistence requirements
25 established by the Finance and Administration Cabinet.

26 ➔Section 7. KRS 12.020 is amended to read as follows:

27 Departments, program cabinets and their departments, and the respective major

1 administrative bodies that they include are enumerated in this section. It is not intended
2 that this enumeration of administrative bodies be all-inclusive. Every authority, board,
3 bureau, interstate compact, commission, committee, conference, council, office, or any
4 other form of organization shall be included in or attached to the department or program
5 cabinet in which they are included or to which they are attached by statute or statutorily
6 authorized executive order; except in the case of the Personnel Board and where the
7 attached department or administrative body is headed by a constitutionally elected
8 officer, the attachment shall be solely for the purpose of dissemination of information and
9 coordination of activities and shall not include any authority over the functions,
10 personnel, funds, equipment, facilities, or records of the department or administrative
11 body.

12 I. Cabinet for General Government - Departments headed by elected officers:

- 13 (1) The Governor.
- 14 (2) Lieutenant Governor.
- 15 (3) Department of State.
 - 16 (a) Secretary of State.
 - 17 (b) Board of Elections.
 - 18 (c) Registry of Election Finance.
- 19 (4) Department of Law.
 - 20 (a) Attorney General.
- 21 (5) Department of the Treasury.
 - 22 (a) Treasurer.
- 23 (6) Department of Agriculture.
 - 24 (a) Commissioner of Agriculture.
 - 25 (b) Agricultural Development Board.
 - 26 (c) Kentucky Agricultural Finance Corporation.
- 27 (7) Auditor of Public Accounts.

- 1 (a) Commonwealth Office of the Ombudsman.
- 2 II. Program cabinets headed by appointed officers:
- 3 (1) Justice and Public Safety Cabinet:
- 4 (a) Department of Kentucky State Police.
- 5 1. Office of Administrative Services.
- 6 a. Division of Operational Support.
- 7 b. Division of Management Services.
- 8 2. Office of Operations.
- 9 a. Division of West Troops.
- 10 b. Division of East Troops.
- 11 c. Division of Special Enforcement.
- 12 d. Division of Commercial Vehicle Enforcement.
- 13 3. Office of Technical Services.
- 14 a. Division of Forensic Sciences.
- 15 b. Division of Electronic Services.
- 16 c. Division of Records Management.
- 17 (b) Department of Criminal Justice Training.
- 18 (c) Department of Corrections.
- 19 (d) Department of Juvenile Justice.
- 20 (e) Office of the Secretary.
- 21 (f) Office of Drug Control Policy.
- 22 (g) Office of Legal Services.
- 23 (h) Office of the Kentucky State Medical Examiner.
- 24 (i) Parole Board.
- 25 (j) Kentucky State Corrections Commission.
- 26 (k) Office of Legislative and Intergovernmental Services.
- 27 (l) Office of Human Resource Management.

- 1 1. Division of Human Resource Administration.
- 2 2. Division of Employee Management.
- 3 (m) Department of Public Advocacy.
- 4 (n) Office of Communications.
- 5 1. Information Technology Services Division.
- 6 (o) Office of Financial Management Services.
- 7 1. Division of Financial Management.
- 8 (p) Grants Management Division.
- 9 (2) Energy and Environment Cabinet:
- 10 (a) Office of the Secretary.
- 11 1. Office of Legislative and Intergovernmental Affairs.
- 12 2. Office of Legal Services.
- 13 a. Legal Division I.
- 14 b. Legal Division II.
- 15 3. Office of Administrative Hearings.
- 16 4. Office of Communication.
- 17 5. Mine Safety Review Commission.
- 18 6. Office of Kentucky Nature Preserves.
- 19 7. Kentucky Public Service Commission.
- 20 (b) Department for Environmental Protection.
- 21 1. Office of the Commissioner.
- 22 2. Division for Air Quality.
- 23 3. Division of Water.
- 24 4. Division of Environmental Program Support.
- 25 5. Division of Waste Management.
- 26 6. Division of Enforcement.
- 27 7. Division of Compliance Assistance.

- 1 (c) Department for Natural Resources.
- 2 1. Office of the Commissioner.
- 3 2. Division of Mine Permits.
- 4 3. Division of Mine Reclamation and Enforcement.
- 5 4. Division of Abandoned Mine Lands.
- 6 5. Division of Oil and Gas.
- 7 6. Division of Mine Safety.
- 8 7. Division of Forestry.
- 9 8. Division of Conservation.
- 10 9. Office of the Reclamation Guaranty Fund.
- 11 (d) Office of Energy Policy.
- 12 1. Division of Energy Assistance.
- 13 (e) Office of Administrative Services.
- 14 1. Division of Human Resources Management.
- 15 2. Division of Financial Management.
- 16 3. Division of Information Services.
- 17 (3) Public Protection Cabinet.
- 18 (a) Office of the Secretary.
- 19 1. Office of Communications and Public Outreach.
- 20 2. Office of Legal Services.
- 21 a. Insurance Legal Division.
- 22 b. Alcoholic Beverage Control Legal Division.
- 23 c. Housing, Buildings and Construction Legal Division.
- 24 d. Financial Institutions Legal Division.
- 25 e. Professional Licensing Legal Division.
- 26 3. Office of Administrative Hearings.
- 27 4. Office of Administrative Services.

- 1 a. Division of Human Resources.
- 2 b. Division of Fiscal Responsibility.
- 3 (b) Office of Claims and Appeals.
- 4 1. Board of Tax Appeals.
- 5 2. Board of Claims.
- 6 3. Crime Victims Compensation Board.
- 7 (c) Kentucky Boxing and Wrestling Commission.
- 8 (d) Department of Alcoholic Beverage Control.
- 9 1. Division of Distilled Spirits.
- 10 2. Division of Malt Beverages.
- 11 3. Division of Enforcement.
- 12 4. Division of Tobacco, Nicotine, and Vapor Product Licensing.
- 13 (e) Department of Financial Institutions.
- 14 1. Division of Depository Institutions.
- 15 2. Division of Non-Depository Institutions.
- 16 3. Division of Securities.
- 17 (f) Department of Housing, Buildings and Construction.
- 18 1. Division of Fire Prevention.
- 19 2. Division of Plumbing.
- 20 3. Division of Heating, Ventilation, and Air Conditioning.
- 21 4. Division of Building Code Enforcement.
- 22 (g) Department of Insurance.
- 23 1. Division of Health and Life Insurance and Managed Care.
- 24 2. Division of Property and Casualty Insurance.
- 25 3. Division of Administrative Services.
- 26 4. Division of Financial Standards and Examination.
- 27 5. Division of Licensing.

- 1 6. Division of Insurance Fraud Investigation.
- 2 7. Division of Consumer Protection.
- 3 (h) Department of Professional Licensing.
- 4 1. Real Estate Authority.
- 5 2. Division of Real Property Boards.
- 6 (4) Transportation Cabinet:
- 7 (a) Department of Highways.
- 8 1. Office of Project Development.
- 9 2. Office of Project Delivery and Preservation.
- 10 3. Office of Highway Safety.
- 11 4. Highway District Offices One through Twelve.
- 12 (b) Department of Vehicle Regulation.
- 13 (c) Department of Aviation.
- 14 (d) Department of Rural and Municipal Aid.
- 15 1. Office of Local Programs.
- 16 2. Office of Rural and Secondary Roads.
- 17 (e) Office of the Secretary.
- 18 1. Office of Public Affairs.
- 19 2. Office for Civil Rights and Small Business Development.
- 20 3. Office of Budget and Fiscal Management.
- 21 4. Office of Inspector General.
- 22 5. Secretary's Office of Safety.
- 23 (f) Office of Support Services.
- 24 (g) Office of Transportation Delivery.
- 25 (h) Office of Audits.
- 26 (i) Office of Human Resource Management.
- 27 (j) Office of Information Technology.

1 (k) Office of Legal Services.

2 (5) Cabinet for Economic Development:

3 (a) Office of the Secretary.

4 1. Office of Legal Services.

5 2. Department for Business and Community Development.

6 a. Development and Retention Division – West Kentucky.

7 b. Development, Retention, and Administrative Division –
8 Central and East Kentucky.

9 c. Community and Workforce Development Division.

10 3. Department for Financial Services.

11 a. Kentucky Economic Development Finance Authority.

12 b. Finance and Personnel Division.

13 c. IT and Resource Management Division.

14 d. Compliance Division.

15 e. Program Administration Division.

16 f. Bluegrass State Skills Corporation.

17 g. The GRANT Commission.

18 4. Office of Strategy and Public Affairs.

19 a. Marketing and Communications Division.

20 b. Research and Strategy Division.

21 5. Office of Entrepreneurship and Innovation.

22 a. Commission on Small Business Innovation and Advocacy.

23 6. Kentucky Film Office.

24 a. Kentucky Film Leadership Council.

25 (6) Cabinet for Health and Family Services:

26 (a) Office of the Secretary.

27 1. Office of Public Affairs.

- 1 2. Office of Legal Services.
- 2 3. Office of Inspector General.
- 3 4. Office of Human Resource Management.
- 4 5. Office of Finance and Budget.
- 5 6. Office of Legislative and Regulatory Affairs.
- 6 7. Office of Administrative Services.
- 7 8. Office of Application Technology Services.
- 8 9. Office of Data Analytics.
- 9 10. Office of Medical Cannabis.
- 10 a. Division of Enforcement and Compliance.
- 11 b. Division of Licensure and Access.
- 12 (b) Department for Public Health.
- 13 (c) Department for Medicaid Services.
- 14 (d) Department for Behavioral Health, Developmental and Intellectual
- 15 Disabilities.
- 16 (e) Department for Aging and Independent Living.
- 17 (f) Department for Community Based Services.
- 18 (g) Department for Family Resource Centers and Volunteer Services.
- 19 (7) Finance and Administration Cabinet:
- 20 (a) Office of the Secretary.
- 21 (b) Office of the Inspector General.
- 22 (c) Office of Legislative and Intergovernmental Affairs.
- 23 (d) Office of General Counsel.
- 24 (e) Office of the Controller.
- 25 (f) Office of Administrative Services.
- 26 (g) Office of Policy and Audit.
- 27 (h) Department for Facilities and Support Services.

- 1 (i) Department of Revenue.
- 2 (j) Commonwealth Office of Technology.
- 3 (k) State Property and Buildings Commission.
- 4 (l) Office of Equal Employment Opportunity and Contract Compliance.
- 5 (m) Kentucky Employees Retirement Systems.
- 6 (n) Commonwealth Credit Union.
- 7 (o) State Investment Commission.
- 8 (p) Kentucky Housing Corporation.
- 9 (q) Kentucky Local Correctional Facilities Construction Authority.
- 10 (r) Kentucky Turnpike Authority.
- 11 (s) Historic Properties Advisory Commission.
- 12 (t) Kentucky Higher Education Assistance Authority.
- 13 (u) Kentucky River Authority.
- 14 (v) Kentucky Teachers' Retirement System Board of Trustees.
- 15 (w) Executive Branch Ethics Commission.
- 16 (x) Office of Fleet Management.
- 17 **(y) Kentucky Communications Network Authority.**
- 18 (8) Tourism, Arts and Heritage Cabinet:
 - 19 (a) Kentucky Department of Tourism.
 - 20 1. Division of Tourism Services.
 - 21 2. Division of Marketing and Administration.
 - 22 3. Division of Communications and Promotions.
 - 23 (b) Kentucky Department of Parks.
 - 24 1. Division of Information Technology.
 - 25 2. Division of Human Resources.
 - 26 3. Division of Financial Operations.
 - 27 4. Division of Purchasing.

- 1 5. Division of Facilities.
- 2 6. Division of Park Operations.
- 3 7. Division of Sales, Marketing, and Customer Service.
- 4 8. Division of Engagement.
- 5 9. Division of Food Services.
- 6 10. Division of Rangers.
- 7 (c) Department of Fish and Wildlife Resources.
- 8 1. Division of Law Enforcement.
- 9 2. Division of Administrative Services.
- 10 3. Division of Engineering, Infrastructure, and Technology.
- 11 4. Division of Fisheries.
- 12 5. Division of Information and Education.
- 13 6. Division of Wildlife.
- 14 7. Division of Marketing.
- 15 (d) Kentucky Horse Park.
- 16 1. Division of Support Services.
- 17 2. Division of Buildings and Grounds.
- 18 3. Division of Operational Services.
- 19 (e) Kentucky State Fair Board.
- 20 1. Office of Administrative and Information Technology Services.
- 21 2. Office of Human Resources and Access Control.
- 22 3. Division of Expositions.
- 23 4. Division of Kentucky Exposition Center Operations.
- 24 5. Division of Kentucky International Convention Center.
- 25 6. Division of Public Relations and Media.
- 26 7. Division of Venue Services.
- 27 8. Division of Personnel Management and Staff Development.

- 1 9. Division of Sales.
- 2 10. Division of Security and Traffic Control.
- 3 11. Division of Information Technology.
- 4 12. Division of the Louisville Arena.
- 5 13. Division of Fiscal and Contract Management.
- 6 14. Division of Access Control.
- 7 (f) Office of the Secretary.
- 8 1. Office of Finance.
- 9 2. Office of Government Relations and Administration.
- 10 (g) Office of Legal Affairs.
- 11 (h) Office of Human Resources.
- 12 (i) Office of Public Affairs and Constituent Services.
- 13 (j) Office of Arts and Cultural Heritage.
- 14 (k) Kentucky African-American Heritage Commission.
- 15 (l) Kentucky Foundation for the Arts.
- 16 (m) Kentucky Humanities Council.
- 17 (n) Kentucky Heritage Council.
- 18 (o) Kentucky Arts Council.
- 19 (p) Kentucky Historical Society.
- 20 1. Division of Museums.
- 21 2. Division of Oral History and Educational Outreach.
- 22 3. Division of Research and Publications.
- 23 4. Division of Administration.
- 24 (q) Kentucky Center for the Arts.
- 25 1. Division of Governor's School for the Arts.
- 26 (r) Kentucky Artisans Center at Berea.
- 27 (s) Northern Kentucky Convention Center.

- 1 (t) Eastern Kentucky Exposition Center.
- 2 (9) Personnel Cabinet:
- 3 (a) Office of the Secretary.
- 4 (b) Department of Human Resources Administration.
- 5 (c) Office of Employee Relations.
- 6 (d) Kentucky Public Employees Deferred Compensation Authority.
- 7 (e) Office of Administrative Services.
- 8 (f) Office of Legal Services.
- 9 (g) Governmental Services Center.
- 10 (h) Department of Employee Insurance.
- 11 (i) Office of Diversity, Equality, and Training.
- 12 (j) Office of Public Affairs.
- 13 (10) Education and Labor Cabinet:
- 14 (a) Office of the Secretary.
- 15 1. Office of Legal Services.
- 16 a. Workplace Standards Legal Division.
- 17 b. Workers' Claims Legal Division.
- 18 c. Workforce Development Legal Division.
- 19 2. Office of Administrative Services.
- 20 a. Division of Human Resources Management.
- 21 b. Division of Fiscal Management.
- 22 c. Division of Operations and Support Services.
- 23 3. Office of Technology Services.
- 24 a. Division of Information Technology Services.
- 25 4. Office of Policy and Audit.
- 26 5. Office of Legislative Services.
- 27 6. Office of Communications.

- 1 7. Office of the Kentucky Center for Statistics.
- 2 8. Board of the Kentucky Center for Statistics.
- 3 9. Early Childhood Advisory Council.
- 4 10. Governors' Scholars Program.
- 5 11. Governor's School for Entrepreneurs Program.
- 6 12. Foundation for Adult Education.
- 7 (b) Department of Education.
- 8 1. Kentucky Board of Education.
- 9 2. Kentucky Technical Education Personnel Board.
- 10 3. Education Professional Standards Board.
- 11 (c) Board of Directors for the Center for School Safety.
- 12 (d) Department for Libraries and Archives.
- 13 (e) Kentucky Environmental Education Council.
- 14 (f) Kentucky Educational Television.
- 15 (g) Kentucky Commission on the Deaf and Hard of Hearing.
- 16 (h) Department of Workforce Development.
- 17 1. Career Development Office.
- 18 2. Office of Vocational Rehabilitation.
- 19 a. Division of Kentucky Business Enterprise.
- 20 b. Division of the Carl D. Perkins Vocational Training Center.
- 21 c. Division of Blind Services.
- 22 d. Division of Field Services.
- 23 e. Statewide Council for Vocational Rehabilitation.
- 24 f. Employment First Council.
- 25 g. Division of Program Policy and Support.
- 26 3. Office of Industry and Apprenticeship Services.
- 27 a. Division of Apprenticeship.

- 1 b. Division of Workforce Talent.
- 2 4. Kentucky Apprenticeship Council.
- 3 5. Division of Technical Assistance.
- 4 6. Office of Adult Education.
- 5 7. Office of the Kentucky Workforce Innovation Board.
- 6 (i) Department of Workplace Standards.
 - 7 1. Division of Occupational Safety and Health Compliance.
 - 8 2. Division of Occupational Safety and Health Education and
 - 9 Training.
 - 10 3. Division of Wages and Hours.
- 11 (j) Office of Unemployment Insurance.
- 12 (k) Kentucky Unemployment Insurance Commission.
- 13 (l) Department of Workers' Claims.
 - 14 1. Division of Workers' Compensation Funds.
 - 15 2. Office of Administrative Law Judges.
 - 16 3. Division of Claims Processing.
 - 17 4. Division of Security and Compliance.
 - 18 5. Division of Specialist and Medical Services.
 - 19 6. Workers' Compensation Board.
- 20 (m) Workers' Compensation Funding Commission.
- 21 (n) Kentucky Occupational Safety and Health Standards Board.
- 22 (o) State Labor Relations Board.
- 23 (p) Employers' Mutual Insurance Authority.
- 24 (q) Kentucky Occupational Safety and Health Review Commission.
- 25 (r) Workers' Compensation Nominating Committee.
- 26 (s) Office of Educational Programs.
- 27 (t) Kentucky Workforce Innovation Board.

- 1 (u) Kentucky Commission on Proprietary Education.
- 2 (v) Kentucky Work Ready Skills Advisory Committee.
- 3 (w) Kentucky Geographic Education Board.
- 4 (x) Department for Disability Determination Services.
- 5 1. Division of Operations.
- 6 2. Division of Support Services.
- 7 3. Division of Specialized Cases.
- 8 4. Division of Case Processing.

9 III. Other departments headed by appointed officers:

- 10 (1) Council on Postsecondary Education.
- 11 (2) Department of Military Affairs.
- 12 (3) Department for Local Government.
- 13 (4) Kentucky Commission on Human Rights.
- 14 (5) Kentucky Commission on Women.
- 15 (6) Department of Veterans' Affairs.
- 16 (7) Kentucky Commission on Military Affairs.
- 17 (8) Office of Minority Empowerment.
- 18 (9) Governor's Council on Wellness and Physical Activity.
- 19 ~~[(10) Kentucky Communications Network Authority.]~~

20 ➔Section 8. KRS 12.023 is amended to read as follows:

21 The following organizational units and administrative bodies shall be attached to the
22 Office of the Governor:

- 23 (1) Council on Postsecondary Education;
- 24 (2) Department of Military Affairs;
- 25 (3) Department for Local Government;
- 26 (4) Kentucky Commission on Human Rights;
- 27 (5) Kentucky Commission on Women;

- 1 (6) Kentucky Commission on Military Affairs;
2 (7) Office of Minority Empowerment;
3 (a) The Martin Luther King Commission; and
4 (8) Office of Homeland Security; ~~and~~
5 ~~(9) Kentucky Communications Network Authority~~.

6 ➔Section 9. On the effective date of this Act, all functions and responsibilities of
7 the Kentucky Communications Network Authority established in Section 2 of this Act
8 that were previously undertaken by the authority shall be transferred to existing personnel
9 employed by the Commonwealth Office of Technology under the direction of the
10 executive director of the Commonwealth Office of Technology. All records, files, and
11 documents previously maintained by Kentucky Communications Network Authority
12 personnel shall be transferred to the Commonwealth Office of Technology. The position
13 of executive director of the Kentucky Communications Network Authority shall be
14 terminated. On or before June 30, 2026, the executive director of the Commonwealth
15 Office of Technology shall determine which, if any, staff previously employed by the
16 Kentucky Communications Network Authority shall be retained and employed by the
17 Commonwealth Office of Technology.

18 ➔Section 10. Whereas it is critical to the proper administration of the Kentucky
19 Communications Network Authority that its functions and responsibilities be undertaken
20 by the employees of the Commonwealth who have the most experience and expertise in
21 overseeing and maintaining broadband communication networks, an emergency is
22 declared to exist, and this Act takes effect upon its passage and approval by the Governor
23 or upon its otherwise becoming a law.